ORDINANCE NO. 430 A

AN ORDINANCE RESTRICTING THE FREQUENCY AND DURATION OF YARD SALES; PATIO SALES CARPORT SALES; GARAGE SALES; PORCH SALES; AND OTHER HOME SALES DEFINED HEREIN; PROVIDING FOR A PROCEDURE FOR OBTAINING A PERMIT FOR SUCH SALES, DECLARING AN EMERGENCY AND FOR OTHER PURPOSES IN THE CITY OF RECTOR, ARKANSAS.

WHEREAS, the City Council of the City of Rector, Arkansas, has determined that yard sales and certain other type of home sales defined herein should be limited in duration and frequency so as to eliminate traffic hazards and promote the public well being.

NOW THEREFORE, BE IT ORDAINED BY THE CITY OF RECTOR, ARKANSAS, AS FOLLOWS:

SECTION I. That sales regulated by this ordinance include what is commonly known as Yard Sales, Carport Sales, Garage Sales, Porch Sales, Patio Sales, and any other sale from a person's residence. Home occupation businesses permitted under the Zoning Ordinance of the City of Rector and properly licensed as a Home Occupation are exempt from the provisions of this ordinance.

SECTION II. Sales defined herein by Section I above are restricted to two (2) days duration and shall not be held on the same premises more than four (4) times in one (1) calendar year .

SECTION III. Any person conducting a home sale pursuant to this ordinance shall obtain a permit for the privilege of conducting said sale. Permits shall be obtained from the Code Enforcement Officer. Each person applying for a permit shall give his/her name, address, and location of such sale, and such other information as is reasonably necessary for the proper regulation of home sales in the City of Rector, Arkansas.

SECTION IV. Any person obtaining a permit pursuant to this ordinance shall be required to display the permit in a conspicuous fashion on the premises in which the home sale is conducted. The permits issued under the ordinance shall be prepared in triplicate with the original being issued to the person conducting the home sale, and one

(1) copy being delivered to the Rector Police Department and one (1) copy being maintained at the Rector City Hall. The Rector Code Enforcement Officer is vested with the responsibility for the issuance of the permits and for the proper filing of the permits in the City Hall. The permits issued hereunder shall specify the date on which the sale is to be conducted.

SECTION V. Each person conducting a sale regulated by this ordinance shall not post any signs advertising said sale more than three (3) days prior to the sale and shall remove said sign on the day following the expiration of the sale.

SECTION VI. Violations of this ordinance shall be a misdemeanor and the fine for each violation shall be Twenty-five Dollars ($25.00). Each day of such sale in violation of this ordinance shall constitute a separate offense.

SECTION VII. All ordinances and parts of ordinances in conflict with this ordinance are hereby specifically repealed. Further, in the event that any portion of this ordinance is declared unconstitutional or void for any reason, the remaining portions are to remain in full force and effect.

SECTION VIII. Because it is necessary for the public preservation protecting the health and welfare of the citizens of Rector, Arkansas, an emergency is hereby declared to exist, and this ordinance shall take effect immediately, from and after its passage and publication.

PASSED this 3RD day of June, 1996.

CITY OF RECTOR, ARKANSAS

Ronald E. Kemp

BY: Ronald E. Kemp, Mayor

ATTEST:

Kenneth R. Burns

Kenneth Burns, City Clerk-Treasurer